

Court No. - 47

Case :- WRIT - C No. - 16687 of 2023

Petitioner :- Mr. Bunty And 15 Others

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Anup Shukla

Counsel for Respondent :- CSC, Ajay Singh, Kaushalendra Nath Singh

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Vinod Diwakar, J.

Put up day after tomorrow i.e. 19.05.2023, as fresh, alongwith records of Writ-C No. 4545 of 2019.

Shri Abhishek Srivastava, Advocate will obtain instructions by then.

Order Date :- 17.5.2023

Shafique

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Decision of the respondents to insist upon the residents to switch over from single point connection to multiple point connection is assailed in this petition.

When the matter is taken up, the Court is informed that the decision would be to the advantage of individual flat owners, as the charges payable by them would reduce. We are further informed that the U.P. Electricity Regulatory Commission has passed an order, stating that only when 51% or above of residents insist upon continuing with the single point connection, that the authority shall respect such decision. It is further pointed out that the total flat holders in this colony are more than 4,000 and only 16 persons have come forward challenging the decision of the authority.

Faced with the above objection, learned counsel for the petitioner comes up with a prayer for adjournment, in order to demonstrate that majority of flat holders are keen in continuing with the single point connection in the colony.

It is also urged that this petition is actually a proxy petition of the builder and does not truly represent the cause of the flat holders.

Put up as fresh once again on 24.05.2023 in order to supplement the petition and demonstrate that majority of flat holders intend to continue with the single point connection.

Name of Sri Abhishek Srivastava be shown as counsel for respondent, when the case is listed next.

Order Date :- 19.5.2023

Ujjawal

Chief Justice's Court

Case :- WRIT - C No. - 16687 of 2023

Petitioner :- Mr. Bunty And 15 Others

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Anup Shukla

Counsel for Respondent :- CSC, Abhishek Srivastava, Ajay Singh, Kaushalendra Nath Singh

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Suneet Kumar, J.

On the request of Sri Anoop Shukla, learned counsel for the petitioner, list this case as fresh on 30th May, 2023.

Order Date :- 24.5.2023

Shiraz

(Suneet Kumar, J.)

(Pritinker Diwaker, C.J.)

Chief Justice's Court

1) Case :- WRIT - C No. - 16687 of 2023

Petitioner :- Mr. Bunty And 15 Others

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Anup Shukla

Counsel for Respondent :- CSC, Abhishek Srivastava, Ajay Singh, Kaushalendra Nath Singh

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

1. Heard Shri Anup Shukla, learned counsel for the petitioner and Shri Kaushalendra Nath Singh & Shri Abhishek Srivastava, learned counsel appearing for respondent Nos. 3 & 5, Shri Ajay Singh, learned counsel for respondent No. 2 as also the learned Standing Counsel who has accepted notices on behalf of respondent No. 1.

2. In the instant writ petition and the connected writ petitions, the constitutional validity of the Clause 4.9 of the Uttar Pradesh Electricity Supply Code, 2005 as brought about by the Uttar Pradesh Electricity Supply Code (Thirteenth Amendment), 2018 has been questioned. It is contended that it is violative of Sections 53, 55 and 177 of the U.P. Electricity Act, 2003 and at the same time, respondent No. 2 i.e. the Uttar Pradesh Electricity Regulatory Commission lacks the authority and power to make specify and/or notify the measures specified in Part B of Clause 4.9 of the Supply Code, 2005. A prayer to declare the Notification dated 10.8.2018, notifying the amendment in Clause 4.9 of Supply Code, 2005, as ultra vires the Electricity Act, 2003 has also been prayed for. Besides a challenge, to the notices dated 6.12.2022 and 24.4.2023 issued to respondent Nos. 4 & 6 by the respondent No. 3 has also been laid.

3. Considering the nature of the dispute raised and the relief sought in the writ petition, we are of the opinion that the same can be adjudicated only after receipt of a response from the respondents.

4. Issue notice to unserved respondent Nos. 4 and 6, returnable at an early date. Steps be taken within 10 days.

5. All the respondents are granted six weeks time for filing counter affidavit. Two weeks thereafter is granted to the learned counsel for the petitioner to file rejoinder affidavit.

6. List thereafter.

7. Learned counsel for the respondents points out that a co-ordinate Bench of this Court in ***Writ-C No. 17587 of 2023 (Apex Dream Homes Pvt. Ltd. versus Managing Director Paschimanchal Vidyut Vitran Nigam Ltd., and 2 others)*** involving identical issues has entertained the writ petition and fixed the same for 17.7.2023 after inviting counter and rejoinder affidavits. The submission is that this writ petition and the connected matters be tagged along with Writ-C No. 17587 of 2023.

8. In view of the submissions made on behalf of the counsel for the respondents which is not disputed by learned counsel for the petitioner and we being of the view that it is desirable that like matters be clubbed together and decided, we direct that the present writ petition along with the connected matters be tagged along with Writ-C No. 17587 of 2023 and be listed on the date fixed i.e. 17.7.2023.

9. The prayer for stay shall be considered after the exchange of the affidavits.

Order Date :- 30.5.2023

Ravi Prakash

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, CJ.)